

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WASHINGTON PERSONAL INJURY PROTECTION – NAMED INDIVIDUALS

If you are an individual and your covered "auto" is licensed or principally garaged in, or "auto dealer operations" are conducted in, Washington, this endorsement modifies insurance provided under the following:

AUTO DEALERS COVERAGE FORM
BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

This endorsement changes the Policy effective on the inception date of the Policy unless another date is indicated below.

Named Insured: JAMES MARSH

Endorsement Effective Date: 08/07/2017

We agree with the "Named Insured", subject to all of the provisions of this endorsement and to all of the provisions of the Coverage Form, except as modified herein, as follows:

SCHEDULE

The following benefits apply unless otherwise indicated below or in the Declarations:

☒ **Basic Personal Injury Protection Benefits**

Benefits	Limit Per Person
Medical And Hospital Expenses	\$ 10,000
Funeral Expenses	\$ 2,000
Income Continuation	\$ 10,000 subject to a maximum of \$200 per week
Loss Of Services Benefit	\$ 5,000 subject to a maximum of \$40 per day not to exceed \$200 per week

☐ **Increased Limits Personal Injury Protection Benefits**

If indicated as applicable above or in the Declarations, the following increased limits personal injury protection benefits apply, instead of the corresponding basic limits personal injury protection benefits.

Benefits	Limit Per Person
Medical And Hospital Expenses	\$ 35,000
Funeral Expenses	\$ 2,000
Income Continuation	\$ 35,000 subject to a maximum of \$700 per week
Loss Of Services Benefit	\$ 14,600 subject to a maximum of \$40 per day

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

A. Coverage

We will pay Personal Injury Protection benefits to or for an "insured" who sustains "bodily injury" in an "accident" arising out of the ownership, maintenance or use of an "auto" as an auto. Subject to the limits shown in the Schedule for the Personal Injury Protection coverage benefits that apply, these Personal Injury Protection benefits consist of the following:

1. Medical And Hospital Expenses. All reasonable and necessary expenses incurred by or on behalf of the "insured" within three years from the date of the "accident" for medical, surgical, x-ray and dental services, including pharmaceuticals, prosthetic devices and eye glasses, and necessary ambulance, hospital, professional nursing.
2. Income Continuation. The "insured's" loss of income from work, during the period commencing 14 days after the date of the "accident" and ending the earliest of the following:
 - a. The date that such "insured" is reasonably able to perform the duties of his or her usual occupation;
 - b. The expiration of 54 weeks from the date of the "accident"; or
 - c. The date of such "insured's" death.

The combined weekly payment for Personal Injury Protection benefits to the "insured" for loss of income under:

- a. Any workers' compensation benefits;
- b. Personal Injury Protection Coverage provided under this Policy; and
- c. Any other disability or income continuation benefits;

shall not exceed 85% of the "insured's" weekly income.

3. Loss Of Services Benefit. Reimbursement for payment to others, not members of the "insured's" household, for reasonable expenses incurred for essential services in lieu of those the "insured" would have performed without income, provided such services are actually rendered. However, reimbursement for the loss of services benefit ends at the earliest of the following:
 - a. The date that the "insured" is reasonably able to perform such services;

- b. The expiration of 52 weeks from the date of the "accident"; or
- c. The date of such "insured's" death.

4. Funeral Expenses.

B. Who Is An Insured

1. The "Named Insured".
2. If the "Named Insured" is an individual, any "family member".
3. Any other person while "occupying" or using a covered "auto".
4. A pedestrian if the "accident" involves a covered "auto".

C. Exclusions

We will not pay Personal Injury Protection benefits for "bodily injury":

1. Sustained by the "Named Insured" or any "family member" while "occupying" any "auto" owned by the "Named Insured" or furnished for the "Named Insured's" regular use, that is not a covered "auto".
2. Sustained by a "family member" while "occupying" any "auto" owned by or furnished for that "family member's" regular use that is not a covered "auto".
3. Sustained by any person:
 - a. Caused by his or her own intentional act; or
 - b. While participating in any prearranged or organized racing or speed contest, or in practice or preparation for any such contest.
4. Arising directly or indirectly out of:
 - a. War, including undeclared war; or
 - b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents.
5. Resulting from the radioactive, toxic, explosive or other hazardous properties of nuclear material.
6. Resulting from the "insured's" use of an automobile in the commission of a felony.

D. Limit Of Insurance

1. Regardless of the number of covered private passenger autos, "insureds", policies or bonds applicable, claims made, premiums paid or "autos" involved in the "accident", the most we will pay to or for each "insured" for Personal Injury Protection benefits because of "bodily injury" sustained by such "insured" in any one "accident" is the Limit Of Insurance shown in the Schedule for each benefit that applies.
2. Any amount payable under this coverage will be reduced by any amount paid or payable to or for each "insured" under any workers' compensation law or any other similar medical or disability benefits law (excluding Medicare).

E. Changes In Conditions

The Conditions are changed for Washington Personal Injury Protection – Named Individuals as follows:

1. The following is added to **Duties In The Event Of Accident, Claim, Suit Or Loss** in the Business Auto and Motor Carrier Coverage Forms and **Duties In The Event Of Accident, Claim, Offense, Suit, Loss Or Acts, Errors Or Omissions** in the Auto Dealers Coverage Form:

The "insured" or someone on his or her behalf must promptly:

- a. Give us written proof of claim, under oath if required, and any such other information that will help us determine the amount due and payable.
- b. Execute authorization to enable us to obtain information with respect to loss of income.

2. **Transfer Of Rights Of Recovery Against Others To Us** is changed by adding the following:

- a. If we make any payment and the "insured" recovers from another party, the "insured" shall hold the proceeds in trust for us and pay us back the amount we have paid. We shall be entitled to recovery only after the "insured" has been fully compensated for damages.
- b. Where either we and/or an "insured" have incurred legal expenses in recovering payments that benefit both, whether incurred in an action for damages or otherwise, there will be an equitable apportionment of such expenses.

The following conditions are added for Washington Personal Injury Protection – Named Individuals:

1. Arbitration

- a. If we and an "insured" disagree whether the "insured" is entitled to recover damages or do not agree as to the amount of damages, then by mutual written agreement the matter will be decided by arbitration. However, disputes concerning coverage under this endorsement may not be arbitrated. If both parties agree in writing, then the matter will be decided by a single arbitrator selected by the parties. If they cannot agree, then each party will, upon written demand of the other, select an arbitrator. The two arbitrators will select a third. Each party will bear the expenses it incurs and bear the expenses of the third arbitrator equally.
- b. Unless both parties agree otherwise, arbitration will take place in the county in which the "insured" lives or the county in which the "insured" resided at the time of the accident. Local rules as to arbitration procedure and evidence will apply. A decision agreed to by the arbitrator or arbitrators will be binding.

2. Coordination And Nonduplication

- a. No "insured" may recover duplicate payments for the same elements of "loss" under this or any other insurance.
- b. If an "insured" is entitled to medical payments coverage or Washington Personal Injury Protection benefits under more than one Coverage Form or policy, our share is the proportion that our Limit of Insurance bears to the total of all applicable limits covering on the same basis.
- c. With respect to losses sustained by an "insured" resulting from an "accident" while "occupying" or as a pedestrian through being struck by a temporary substitute "auto" or a non-owned "auto", this coverage will apply as excess over any other valid and collectible medical payments coverage or Washington Personal Injury Protection benefits.

F. Additional Definitions

1. As used in this endorsement, the definition of "auto" in the **Definitions** section is replaced by the following:

"Auto" means any self-propelled land motor vehicle or trailer, other than a:

- a. Farm-type tractor or other self-propelled equipment designed for use principally off public roads, while not on public roads.
- b. Vehicle operated on rails or crawler treads.
- c. Vehicle located for use as a residence or premises.
- d. Motor home.
- e. Moped.
- f. Motorcycle.

2. As used in this endorsement, the following are added to the **Definitions** section:

- a. "Family member" means a person related to the "Named Insured" by blood, marriage or adoption, including a ward or foster child, who is a resident of the "Named Insured's" household.
- b. "Named Insured" means the person named in the Declarations of this Coverage Form or policy and his or her spouse if a resident of the same household.
- c. "Occupying" means in or upon or entering into or alighting from.